

Contracts
Rego v. Decker
482 P.2d 834 (1971)

Keyword Subject

Breach of Contract, Indefiniteness, Rent

Facts

Appellant (Rego) leased his land and car service station to appellee (Decker) for one year in 1966. The terms of the lease laid out the option for a lease renewal for an additional 4 years given a set of additional terms. These terms included profit sharing from the appellee to the appellant and stated that the appellant would get the ground paved. Appellant never got the land paved and appellee tried to exercise his purchase option. Appellant refused and appellee sued.

Procedural History

Trial Court: In favor of Plaintiff (Specific Performance and \$15,000 for paving)
Appeal: Split decision (Specific Performance and remand for security on same)

Issue

Holding:

Principle

Reasoning

Separate Opinions

Notes